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2025 Code of Georgia

Title 29 - Guardian and Ward (Chs. 1 — 11)

Chapter 2 - Guardians of Minors (Arts. 1 — 6)

Article 1 - Minors (Pts. 1 — 5)

Part 3 - Temporary Guardianship of Minors (§§ 29-2-5 — 29-2-8)

§ 29-2-5. Petitions for temporary guardianship; requirements of petition

Universal Citation:

GA Code § 29-2-5 (2025) 

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(a) A petition to be appointed the temporary guardian of a minor may be filed by an individual who has physical custody of the minor.

(b) The petition shall be filed in the probate court of the county of domicile of the petitioner; however, if the petitioner is not a domiciliary of this state, the petition may be filed in the probate court of the county where the minor is found.

(c) A petition for the appointment of a temporary guardian shall include the following:

- (1) The name, address, and date of birth of the minor;
- (2) The name and address of the petitioner and the petitioner's relationship to the minor, if any;
- (3) A statement that the petitioner has physical custody of the minor and:
 - (A) Is domiciled in the county in which the petition is being filed; or
 - (B) Is not a domiciliary of this state and the petition is being filed in the county where the minor is found;
- (4) The name, address, and county of domicile of any living parent of the minor and a statement of whether one or both of the parents is the minor's natural guardian;
- (5) A statement of whether one or both of the parents have consented in a notarized writing to the appointment of the petitioner as temporary guardian and, if so, that the consents are attached to the petition;
- (6) If the sole parent or both parents have not consented to the appointment of the temporary guardian, a statement of the circumstances that give rise to the need for the appointment of a temporary guardian; and
- (7) The reason for any omission in the petition for temporary guardianship in the event full particulars are lacking.

History

Code 1981, § 29-2-5, enacted by Ga. L. 2004, p. 161, § 1; Ga. L. 2006, p. 805, § 3/SB 534.

Annotations

JUDICIAL DECISIONS

Editor's notes.

In light of the similarity of the statutory provisions, decisions under former O.C.G.A. § 29-4-4.1 are included in the annotations for this Code section.

Temporary guardianship dissolved. —

Under former O.C.G.A. § 29-4-4.1(c), trial court correctly dissolved guardianship under former O.C.G.A. § 29-4-4.1 where guardianship at time of its creation was intended to be or was represented to be temporary in nature. *Hays v. Jeng*, 184 Ga. App. 157, 360 S.E.2d 913, 1987 Ga. App. LEXIS 2157 (1987) (decided under former O.C.G.A. § 29-4-4.1).

Appointment to provide health insurance denied. —

Where the child was living with the mother, who was not alleged to be incompetent or under any duress or difficulty with respect to her parental responsibilities, the court properly refused to appoint a temporary guardian solely for the provision of health insurance. *In re Roscoe*, 242 Ga. App. 440, 529 S.E.2d 897, 2000 Ga. App. LEXIS 213 (2000) (decided under former O.C.G.A. § 29-4-4.1).

Opinion Notes

OPINIONS OF THE ATTORNEY GENERAL Editor's notes.

In light of the similarity of the statutory provisions, an opinion under former O.C.G.A. § 29-4-4.1 is included in the annotations for this Code section.

Cannot appoint permanent guardian if child has living parent. —

Unless an appointment of a temporary guardian was made under former O.C.G.A. § 29-4-4.1, a probate court was without authority to appoint a guardian of the person for a minor child if the child had living parents, unless the parents relinquished or forfeited their rights in the child. 1983 Op. Att'y Gen. No. U83-37 (decided under former O.C.G.A. § 29-4-4.1).

Research References & Practice Aids

Law reviews.

For annual survey article discussing wills, trusts and administration of estates, see 52 *Mercer L. Rev.* 481 (2000).

For article, "Wills, Trusts & Administration of Estates," see 53 *Mercer L. Rev.* 499 (2001).

For annual survey of wills, trusts, guardianships, and fiduciary administration, see 58 Mercer L. Rev. 423 (2006).

For annual survey on wills, trusts, guardianships, and fiduciary administration, see 74 Mercer L. Rev. 277 (2022).

Hierarchy Notes:

O.C.G.A. Title 29

O.C.G.A. Title 29, Ch. 2

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